

HOUSE No. 2398

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to strengthen our public health infrastructure to address Alzheimer's and all dementia.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/16/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 2398

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 2398) of Marjorie C. Decker for legislation to strengthen the public health infrastructure to address Alzheimer’s Disease and dementia. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to strengthen our public health infrastructure to address Alzheimer’s and all dementia.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 111 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 24N the following section:-

3 24P: Alzheimer’s Disease and Related Dementias Awareness

4 Section 24P. (a) The Department of Public Health, in partnership with the Executive
5 Office of Elder Affairs and the Massachusetts Advisory Council on Alzheimer’s Disease and All
6 Other Dementias, shall develop a public awareness campaign on brain health, Alzheimer’s
7 disease and related dementias, and incorporate the campaign into its existing, relevant public
8 health outreach programs on an ongoing basis. The public awareness campaign shall:

9 (i) educate health care providers on the importance of early detection and timely
10 diagnosis of cognitive impairment, validated cognitive assessment tools, current and emerging
11 treatment options, the value of a Medicare Annual Wellness visit for cognitive health, and the
12 Medicare care planning billing code for individuals with cognitive impairment;

(ii) increase public understanding and awareness of early warning signs of Alzheimer's disease and other types of dementia, the value of early detection and diagnosis, and how to reduce the risk of cognitive decline, particularly among persons in diverse communities who are at greater risk of developing Alzheimer's disease and other types of dementia; and

(iii) inform health care professionals and the general public of dementia care coordination services for those living with Alzheimer's disease and related dementias and other resources and services available to individuals living with dementia and their families and caregivers, in partnership with the Executive Office of Elder Affairs, and the Massachusetts Advisory Council on Alzheimer's Disease and All Other Dementias.

(b). The department shall strive to provide uniform, consistent guidance on Alzheimer's and other dementia in nonclinical terms, with an emphasis on cultural relevancy and health literacy, specifically targeting diverse populations who are at higher risk for developing dementia in its public awareness and educational outreach programs.

SECTION 2. Section 16AA of Chapter 6A of the General Laws, as amended by Section 7 of Chapter 154 of the Acts of 2018 is hereby further amended in subsection (f) by inserting after the words "shall detail such progress on a regional basis" the following:-

The annual report shall include data on the racial and ethnic disparities in morbidity and mortality rates for Alzheimer's disease and related dementias and other diseases identified by the Office of Health Equity.

SECTION 3. Said section 16AA of Chapter 6A of the General Laws, as amended by Section 1 of Chapter 2020 of the Acts of 2018, is hereby further amended by inserting after (3) the following section:-

(4) The department of public health shall include the Caregiver Module and Cognitive Decline Module in the annual Behavioral Risk Factor Surveillance System (BRFSS) survey on a rotating annual basis to collect prevalence data, track trends over time and analyze data to direct public health programs and resources.

SECTION 4. Chapter 6A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 16FF the following section:-

Section 16GG: Massachusetts Director of Dementia Care and Coordination

Section 16GG. (a) The position of Director of Dementia Care and Coordination is created within the Executive Office of Health and Human Services. The Secretary of Health and Human Services shall appoint the director who shall serve at the pleasure of the secretary. The director may call upon appropriate agencies of the state government for assistance as is needed. Duties and responsibilities of the director shall include, but not be limited to, the following:

(b) Coordinate the successful implementation of the Alzheimer's Disease State Plan.

(c) In coordination with relevant departments and Chair of the Massachusetts Advisory Council on Alzheimer's Disease and All Other Dementias, support the council's work and annual updates to the Alzheimer's state plan.

(d) Coordinate the public awareness efforts as directed in Section 1; Facilitate and support coordination of outreach programs and services between agencies, area agencies on aging, aging services access points and other interested groups for the purpose of fostering public awareness and education regarding Alzheimer's disease and other forms of dementia.

(e) Coordinate with relevant state agencies and organizations to ensure coordination of services, access to services and a high quality of care for individuals with dementia and their family caregivers to meet the needs of the affected population and prevent duplication of services; Facilitate coordination of services and activities between organizations interested in dementia programs and services, including, but not limited to, area agencies on aging, aging services access points, service providers, advocacy groups, legal services, emergency personnel and law enforcement.

(f) Assess dementia-related training requirements for healthcare, long term care and home and community based services professionals on a biannual basis, including hours required, frequency of training required and content of training, to determine whether existing training requirements meet the needs of the dementia community in Massachusetts; the assessment shall also include whether trainings incorporate Dementia Care Practice Recommendations and person centered care best practices; Upon completion of the assessment, provide recommendations to the Department of Public Health, the Executive Office of Elder Affairs, the Massachusetts Advisory Council on Alzheimer's Disease and All Other Dementias, the Board of Registration in Nursing and the Board of Registration in Medicine for additional training necessary to adequately support the dementia community in Massachusetts.

(g) Work with the Commissioner of the Department of Public Health, the Board of Registration in Nursing and the Board of Registration in Medicine to ensure healthcare professionals are in compliance with dementia training requirements; work with the Commissioner of the Department of Public Health to ensure that hospitals are dementia capable and in compliance with Chapter 220 of the General Laws.

77 (h) Identify and manage grants to assist Massachusetts in becoming dementia-capable.

78 (i) Collect, monitor and report on data related to the impact of Alzheimer's disease in the

79 commonwealth; work with the Department's Behavioral Risk Factor Surveillance System

80 Coordinator in identifying available funds to execute appropriate modules for critical data

81 collection and research; coordinate with the Department of Public Health to improve public

82 health outcomes utilizing relevant dementia data.

83 SECTION 6. This act shall take effect upon becoming a law.